

Mapping the thinkers behind modern sharia reform

Analysis run: September 12, 2026

PROVIDER	MODEL	LANGUAGE	AUDIENCE
Openrouter	Deepseek/deepseek-v4-pro	En	GENERAL
INTONATION	LENGTH	TEMPERATURE	
NEUTRAL	Long	0.7	

SYSTEM PROMPT

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USER PROMPT

Write a concise, self-contained article entry for the title: "Mapping the thinkers behind modern sharia reform".

Overall topic for alignment: Intellectual networks shaping humanistic trends in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Modern sharī'a reform is driven by transnational intellectual networks that revive classical tools—*ijtihād* (independent reasoning), *maṣlaḥa* (public interest), *maqāṣid al-sharī'a* (higher objectives of law), and necessity (*ḍarūra*)—to engage with modernity. Reformers ground their work in the Qur'an's emphasis on justice, mercy, and ease, expanding medieval *maqāṣid* to include freedom, dignity, and equality. The four Sunnī legal schools provided a pluralist legal ecology rather than a rigid monolith, each offering resources for evolution.

Colonial disruption and orientalist historicism catalysed defensive reform; later, scholars like Wael Hallaq challenged the rupture narrative by highlighting internal mechanisms of change. Early networks formed around Jamāl al-Dīn al-Afghānī, Muḥammad 'Abduh, and Rashīd Riḍā, championing rational reinterpretation and public good. Ṭāhir ibn 'Āshūr produced the century's most systematic *maqāṣid* restatement, universalising its objectives. In South Asia, Muḥammad Iqbāl reclaimed *ijtihād* as a permanent principle, while Fazlur Rahman's "double-movement" hermeneutic extracted moral universals from scripture for contemporary application.

Mass Muslim migration spurred the development of *fiqh al-aqalliyyāt* (jurisprudence of minorities) by thinkers like Ṭāhā Jābir al-'Alwānī and Yūsuf al-Qaraḍāwī, centring facilitation and necessity in Western contexts. Human rights and feminist interventions pushed further: Abdullahi An-Na'im grounded universal rights in Meccan egalitarianism; Fatema Mernissi and Amina Wadud deployed historical critique and ritual activism; Khaled Abou El Fadl emphasised a "moral-weight" hermeneutic. Networks coalesced in platforms like the European Council for Fatwa and Research and the Marrakesh Declaration.

Emerging work applies *maqāṣid* to AI ethics, aiming to align technology with human dignity. Together, these networks demonstrate sharī'a's capacity to speak the ethical language of modernity through human-centred, pluralistic, and adaptive legal reasoning.

Mapping the thinkers behind modern sharia reform

For much of the 20th and 21st centuries, reformist voices within Islamic jurisprudence have not operated in isolation. They have drawn on interconnected intellectual networks that crisscross continents, reviving classical tools such as *ijtihād* (independent legal reasoning) and *maṣlaḥa* (public interest) to address modern challenges. This piece traces that genealogy, showing how thinkers from the colonial encounter to the digital age have woven humanistic threads into the fabric of Islamic law.

Quranic foundations and the primacy of objectives

Reform movements consistently anchor themselves in the Qur'an's emphasis on justice, mercy and the removal of hardship. Verses like “*Allah intends for you ease and does not intend for you hardship*” (Q 2:185) and “*No bearer of burdens will bear the burden of another*” (Q 6:164) underpin the principle that the law serves human well-being. Medieval jurists distilled this into the doctrine of *maqāṣid al-sharīʿa* – the higher objectives of the law – which originally protected religion, life, intellect, progeny and property. Reformers later expanded this list to include freedom, dignity and equality, arguing that any ruling that undermines these objectives must be revisited through fresh *ijtihād*.

Classical schools as a reservoir of pluralism

The four surviving Sunnī juristic schools – Ḥanafī, Mālikī, Shāfiʿī and Ḥanbalī – provide a legal ecology rather than a monolith. The Ḥanafī school, with its strong reliance on *istiḥsān* (juristic preference) and local custom (*urf*), offered fertile ground for reformers in Ottoman and South Asian contexts. Mālikī jurisprudence elevated the practice of the people of Medina (*ʿamal ahl al-Madīna*) and public interest (*maṣlaḥa mursala*) to a degree that consistently permits evolutionary change. Even the text-bound Ḥanbalī school, through scholars like Ibn Taymiyya, bequeathed a robust theory of necessity (*ḍarūra*) that modern reformers deploy in minority settings. The Shāfiʿī school, with its rigorous methodology, produced reformers who balanced tradition with systematic legal theory. All four schools, alongside Shīʿa traditions, preserve the memory that law was never fixed – a memory that modern networks could weaponise against ossification.

The colonial rupture and the orientalist mirror

European colonialism disrupted native institutions, replacing parts of sharīʿa with imported codes and simultaneously spurring a defensive reform impulse. Orientalist scholarship of the 19th and early 20th

centuries, while often essentialising Islam, generated a new textual-critical approach. Figures like Ignaz Goldziher and Joseph Schacht historicised Islamic law, arguing that much of what passed as divine was human product. Later revisionist work by Wael Hallaq challenged the rupture narrative, showing that the tradition possessed its own internal mechanisms of change. Reformers absorbed orientalist methods selectively: historical criticism could be a tool for re-opening the gates of *ijtihād* without discarding revelation.

The first networks: from al-Afghānī to Ibn Ashur

The pan-Islamist Jamāl al-Dīn al-Afghānī (d. 1897) and his Egyptian disciple Muḥammad ‘Abduh (d. 1905) ignited a movement that sought to reconcile Islamic reason with modernity. ‘Abduh, as Grand Mufti of Egypt, insisted that the Qur’an invites rational reflection and that outdated interpretations must yield to the public good. His Syrian disciple Rashīd Riḍā (d. 1935) carried the torch into a more Salafī direction but still championed *maṣlaḥa* as a legislative principle. In Tunisia, Ṭāhir ibn ‘Āshūr (d. 1973) offered the century’s most sophisticated restatement of *maqāṣid*, arguing that the law’s objectives are universal and can ground a humanistic system that honours reason, equality and freedom. These men did not work in a vacuum; they corresponded, published in the same journals (notably *al-Manār*), and their ideas traversed Istanbul, Cairo, Damascus and Tunis.

South Asia’s contribution: Iqbāl and Fazlur Rahman

In the Indian subcontinent, Muḥammad Iqbāl (d. 1938) philosophically re-situated *ijtihād* as a permanent principle, even suggesting that a modern parliament embodying *ijmā’* (consensus) could replace classical councils. His vision influenced the Pakistani scholar Fazlur Rahman (d. 1988), who developed a “double-movement” hermeneutic: first derive general moral principles from the specific contexts of the Qur’an, then apply those principles to today’s circumstances. Rahman’s work rippled across American, Indonesian and Turkish academia, seeding a network of progressive legal thinkers who insisted that law must serve ethical monotheism, not ritualistic legalism.

Minorities and majorities: the *fiqh al-aqalliyyāt* turn

The mass migration of Muslims to the West threw up new questions that traditional jurisprudence, crafted for a default Muslim-majority polity, could not easily answer. Thinkers like Ṭāhā Jābir al-‘Alwānī (d. 2016) and Yūsuf al-Qaraḍāwī (d. 2022) spearheaded the development of *fiqh al-aqalliyyāt* (jurisprudence of minorities). They argued that minority status is not a temporary aberration but a permanent condition requiring its own legal methodology, one that foregrounds facilitation (*taysīr*), necessity (*ḍarūra*) and the objectives of the law. This school enabled scholars to issue rulings on mortgages, marriage and civic participation that would have been unthinkable in a pre-modern majority context. The European Council for Fatwa and Research became a nodal point for this network, linking scholars from Morocco to Malaysia.

Human rights and feminist interventions

The 1990 Cairo Declaration on Human Rights in Islam represented an early, state-centred attempt to articulate Islamic human rights. Reformists quickly criticised it for remaining a prisoner of classical formulations, particularly on gender and religious freedom. Over the following decades, a global network of reformers pushed beyond apologetics. Abdullahi Ahmed An-Na'im, a Sudanese-American student of the late *maqāṣid* scholar Maḥmūd Ṭāhā, argued that the universal human rights standard could be grounded in the Meccan Qur'an's egalitarian message, while the historically contingent Medinan rulings were steps toward that ideal. His work interlocked with that of the Moroccan scholar Fatema Mernissi (d. 2015), who used historical critique to recover feminist possibilities within the tradition, and the African-American scholar Amina Wadud, whose mixed-gender prayer-leading dramatised the demand for ritual equality. In North America, Khaled Abou El Fadl's hermeneutics emphasised a "moral-weight" reading of scripture, insisting that any interpretation that violates basic dignity and reason cannot be authentic. These voices coalesced into a loose network of human-centred reform visible in the 2016 Marrakesh Declaration, which affirmed the citizenship rights of religious minorities in Muslim-majority societies.

AI, ethics and a new humanism?

The latest frontier blends the classical *maqāṣid* tradition with contemporary technology. Engineers and jurists are beginning to explore how AI can be designed to align with the higher objectives – preserving life, intellect and dignity through bias-mitigation and fairness by design. A humanistic approach to *sharī'a* suggests that algorithmic governance, like law, must be audited for its impact on the vulnerable. While no single thinker dominates this space, ideas drawn from Fazlur Rahman's double-movement and Ibn 'Ashūr's universal objectives are being refashioned into ethical frameworks for AI in Muslim contexts. The same networks that brought *fiqh al-aqallīyyāt* and gender-just hermeneutics are now considering how technologies can either amplify or distort the human dignity that the Qur'an claims to uphold.

Conclusion

The intellectual network behind modern *sharī'a* reform is layered and transnational. It stretches from 'Abduh's Cairo to Rahman's Chicago, from Ibn 'Ashūr's Tunis to An-Na'im's Atlanta. Its members have re-deployed classical tools – *maṣlaḥa*, *maqāṣid*, *ḍarūra* and *ijtihād* – to address colonial trauma, gender hierarchies, minority existence and, now, technological disruption. By foregrounding the human subject as the primary addressee of divine law, these networks suggest that the tradition's inner logic is not fundamentally opposed to modernity but is capable of speaking its ethical language fluently.

SEGMENTED DATA (1)

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For much of the 20th and 21st centuries, reformist voices within Islamic jurisprudence have not operated in isolation. They have drawn on interconnected intellectual networks that crisscross continents, reviving classical tools such as *ijtihad* (independent legal reasoning) and *maṣlaḥa* (public interest) to address modern challenges. This piece traces that genealogy, showing how thinkers from the colonial encounter to the digital age have woven humanistic threads into the fabric of Islamic law.

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